

CHIRUNDU TOWN COUNCIL

MINUTES OF THE PROCUREMENT COMMITTEE MEETING HELD ON TUESDAY, 15TH NOVEMBER, 2022 AT 14:30 HOURS

PRESENT

Chairperson

Mr. Mathews Mashapi
Director of Works

MEMBERS

Mr. Kebby Kazoka
District Treasurer

Mrs. Pauline C. Abwino
District Planning Officer

Mr. Godfrey Mulela
Co-opted Member

Mr. Emmanuel Kazangarale
Co-opted Member

SECRETARIAT

Ms. ChombaChileshe
Procurement Officer

Mr. Charles Mwewa
Assistant Procurement Officer

IN ATTENDANCE

Mrs. Namwinga
Administrative Officer

APOLOGIES

Apologies were received from Mrs. Laura Y. Munkanta ,Mr . Miyoba MuukaMr. Boniface Muzumara and Mr. Evaristo Kangwa as they were out of station for other official duties.

CTC/01/07/22

CALL TO ORDER

The meeting was called to order at 15:05 hours.

CTC/02/07/22

OPENING REMARKS

The Chairperson welcomed the Members to the meeting and urged them to participate fully with a view of reaching the desired decision for the matters at hand.

CTC/03/07/22

NOTICE OF MEETING

The notice convening the meeting was read by the Secretariat.

CTC/04/07/22

DECLARATION OF INTEREST

None of the members had interest to declare.

CTC/05/07/22

CONFIRMATION OF MINUTES OF THE PROCUREMENT COMMITTEE MEETING HELD ON 19TH OCTOBER, 2022

Minutes of the Procurement Committee meeting held on Wednesday 19th October, 2022 were presented before the committee for confirmation. After due considerations on the matter, on a proposal by Mr. Godfrey Mulela duly seconded by Mr. Kebby Kazoka it was;

RESOLVED

That the minutes of the Procurement Committee meeting held on Wednesday 19th October, 2022 be confirmed as a true and correct record of the proceedings.

REPORT FROM SECRETARIAT

1. CTC/07/07/22NEGOTIATION REPORT ON THE TENDER FOR THE CONSTRUCTION OF 1X3 CLASSROOM BLOCK AT CHIWENA COMMUNITY SCHOOL IN CHIRUNDU DISTRICT

1.0 INTRODUCTION

Chirundu Town Council received funds through the 2022 Constituency Development Fund (CDF) for implementation of the project.

2.0 BACKGROUND

The secretariat reported that in the Invitation for quotations on 30th September 2022 for the construction of 1X3 classroom block at Chiwena Community School in Chirundu District Constituency Development fund (CDF) - 2022 allocation.

3.0RECOMMENDATION

The Evaluation Committee recommended that;

The award for the construction of 1X3 classroom block at Chiwena Community School to Messrs Kwacha Industries and Hardware Ltd be acceded to after negotiations pursuant to section 68(c) for the lowest evaluated price is in excess of the available budget. Evaluated price is 530, 590.47.

During the deliberation of the matter, the members wanted to know the budget for the aforementioned project. In response, the secretariat guided that it was ZMW 525,300.00

4.0.DECISSION OF THE COMMITTEE

After the deliberations of the matter, upon on a proposal by Mr. Kebby Kazoka duly seconded by Mr. Emmanuel Kazangalare it was,

RESOLVED

That, theaward forthe construction of 1X3 classroom block at Chiwena Community School tender to MessrsKwacha Industries and Hardware Ltd be acceded to after the negotiations as recommended by the Evaluation Committee.

FEEDBACK ON THE CONTRACTNEGOTIATION

On Thursday 21st October, 2022 at 10:00 hours, the Evaluation Committee invited the best evaluated bidder namely Kwacha Industries and Hardware Limited for tender negotiations in accordance with ZPPA 68(4)(C) the lowest evaluated price is in excess of the available budget.

After the lengthy bargaining, the contractor gave the Evaluation Committee a 1.01% giving a ZMW 525,200.00 discount to allow Chirundu Town Council meet the allocated budget of ZMW 525,300.00 for the Construction of a 1 x 3 Classroom Block at Chiwena Community School.

This matter came for the information the Procurement Committee.

2.0 CTC/07/07/22APPROVAL OF THE SOLICITATION DOCUMENTS FOR THE CONSTRUCTION OF A DOUBLE STOREY OFFICE BLOCK UNDER CAPITAL FUNDED PROJECTS AND CONSTRUCTION OF A 1X3 CLASSROOM BLOCK, ONE (1) STAFF HOUSE, ONE (1) ABLUTION BLOCK AND DRILLING AND EQUIPPING ONE (1) SOLAR POWERED BOREHOLE AT KATWEZELE COMMUNITY SCHOOL FUNDED BY CONSTITUENCY DEVELOPMENT FUND RESPECTIVELY

1.0 INTRODUCTION

CHIRUNDU TOWN COUNCIL (CTC) Procurement Unit is seeking authority from the CTC Procurement Committee to consider approval of the solicitation documents for the construction Double Storey Office Block and construction of a 1x3 Classroom block, One (1) Staff House, One (1) Ablution block and drilling and equipping One (1) solar powered borehole at Katwezele Community School in Chirundu District.

2.0 BACKGROUND

CHIRUNDU TOWN COUNCIL (CTC) set aside funds in the 2022 budget for the Capital and CDF Projects and it is therefore intended that part of the proceeds of these funds be applied to cover eligible payments under the invitation for the construction Double Storey Office Block and construction of a 1x3 Classroom block, One (1) Staff House, One (1) Ablution block and drilling and equipping One (1) solar powered borehole at Katwele Community School in Chirundu District at the estimated costs of ZMW1,300,000.00 Capital Project and ZMW1,383,300.00 CDF project respectively.

3.0 INVITATION OF CONTRACTORS

The invitation of contractors for the construction Double Storey Office Block and the tender for construction of a 1x3 Classroom block, One (1) Staff House, One (1) Ablution block and drilling and equipping One (1) solar powered borehole at Katwezele Community School shall be published in the Zambia Daily Mail. The Procurement Committee members may wish to know that the said projects will be undertaken using the Open National Bidding Method of Procurement.

4.0 SOLICITATION DOCUMENTS

In line with Section 34 (1) (b) of the Public Procurement Act which requires the prior authorization of solicitation documents prior to their issue.

5.0 RECOMMENDATION

Due to the need of these projects, CTC Procurement Unit is hereby seeking authority from the CTC Procurement Committee to consider the:

1. Approval of the draft solicitation documents in line with Section 34 (1) (b) of the Public Procurement Act.

DECISION OF THE COMMITTEE

After the deliberations on the matter, on a proposal by Mrs. Pauline C. Abwino duly seconded by Mr. Godfrey Mulela it was,

RESOLVED

That the Solicitation Documents for both projects be approved as presented by the Procurement Unit.

- 3 **CTC/08/07/22 CONSTRUCTION OF A 2X3(DOUBLE STOREY)
CLASSROOM BLOCK AT MANDENGA PRIMARY
SCHOOL IN CHIRUNDU CENTRAL WARD OF
CHIRUNDU CONSTITUENCY**

1.0 INTRODUCTION

Chirundu Town Council has received funds through the Constituency Development Fund (CDF) for the implementation of the project.

2.0 BACKGROUND

Chirundu Town Council Procurement Unit issued out an Invitation for Bids on 1st November 2022 for the Construction of a 2X3 (Double Storey) Classroom Block at Mandenga Primary School in Chirundu Central Ward of Chirundu District.

Table 1.Bids received.

The closing date for submission and opening of bids was on Friday 4th November 2022 at 10; 00 hours. At the time of opening, nine bids were received and read out as indicated in the table below;

S/N	PROJECT NAME	NAME OF BIDDER	BID SUM
1.	Construction of a 2X3 (Double Storey) Classroom Block at Mandenga Primary School in Chirundu Central Ward of Chirundu District.	Maxim Maintenance Solutions	K1,998,888.85
		Kwacha Industries and Hardware LTD	K1,780,210.08
		Chidyamatondo General Dealers and Contractors	K2,691,632.59
		Agadah Construction Zambia Ltd	K1,997,925.90
		Chipochile Ventures Limited	K1,922,671.51
		Dizzy Mining Limited	K1,991,696.88
		Koopcotex	K1,991,696.88
		Madi Construction	K2,549,239.20
		Trymate Zambia Ltd	K1,755,944.01

The Committee may wish to note that Procurement Unit received two late bids after the opening had already been done and these bids were not considered for Evaluation.

3.0 EVALUATION COMMITTEE

An adhoc Evaluation Committee was constituted to undertake the evaluation of the bids. The Committee comprised the following members:

S/N	NAME	POSITION	ORGANISATION
1.	Samuel Masumbuko	Deputy Director Works	Council
2.	Fidelis Lwambo	Accountant	Council
3.	ChilesheChomba	Procurement Officer	Council
4.	Mwewa Charles	Assistant Procurement Officer	Council
5.	MunkumpaMcshane	District Works Supervisor	DC's Office
6.	MakunkaMakunka	District Building Inspector	Education

The Committee met on 9th November 2022 at 10:00hours in the Council Chamber.

The evaluation Committee followed the procedure in accordance with the request for quotations. The evaluation procedure consisted of four stages:

- Preliminary,
- Technical
- Commercial
- Financial evaluation

Only bidders who were found responsive at each stage proceeded to the next stage.

PRELIMINARY EVALUATION

The preliminary evaluation was conducted under the following criteria:

Qualification requirements:

- a. Company registration/ Certificate of incorporation/PACRA
- b. Valid ZRA, tax clearance certificate
- c. Valid NCC certificate grade 6 category B
- d. Valid EIZ certificate
- e. Duly signed letter of bid
- f. Bid security
- g. Proof of credit line
- h. Compliance certificate from compensation fund control board
- i. NAPSA
- j. Clean litigation status
- k. Power of attorney

TECHNICAL EVALUATION: -

- a. Site Engineer with three years' experience
- b. 1no. or more Works foreman
- c. 1no. or more Electricians
- d. List of proposed tools and equipment with proof of ownership or hire
- e. Proof of experience in executing similar works
- f. 2no. or more bricklayers
- g. 1no. or more plumbers
- h. 1no. or more carpenters
- i. Proof of qualification for each personnel

COMMERCIAL EVALUATION

- a. Amount quote in Zambian Kwacha
- b. Delivery period of 5no. months or less
- c. Bid validity of not less than 60 days
- d. 3no. of months latest bank account statements
- e. Work schedule in graph mode/ Gantt Chart
- f. Priced bill of quantity
- g. Proof of purchase of solicitation document

FINANCIAL EVALUATION

- a. Submitted tender sum.
- b. Arithmetical error check
- c. Unconditional discounts if any
- d. Tax inclusion if not included in the bid sum
- e. Corrected tender sum

EVALUATION OF BIDS

After confirmation of the evaluation criteria, score sheets were issued to each member of the evaluation team evaluated the bids.

The evaluation committee proceeded to undertake the preliminary evaluation of bids as shown in the table below:

Table No.1 PRELIMINARY EVALUATION STAGE

The results of the Preliminary evaluation are shown below:

S/N	Qualification	Bidder No.1	Bidder No.2	Bidder No.3	Bidder No.4	Bidder No. 5	Bidder No. 6	Bidder No.7	Bidder No. 8	Bidder No. 9
1.	Company Registration/ Certificate of incorporation/ PACRA	100	100	100	100	100	100	100	100	100
2.	Valid ZRA tax clearance certificate	100	100	100	100	100	100	100	100	100
3.	Valid NCC certificate grade 6 category B	100	0	100	100	100	100	100	100	100
4.	Valid EIZ certificate	100	100	100	100	100	100	100	100	100
5.	Duly signed letter of bid	0	100	100	100	100	100	100	100	100
6.	Bid Security	0	100	100	100	100	100	100	100	100
7.	Proof of credit line	0	100	100	100	100	100	100	100	100
8.	Workers Compensation	100	100	100	100	100	0	0	100	100
9.	NAPSA	100	100	100	100	100	100	0	100	100

10.	Litigation Status	0	100	100	100	100	100	100	NO	100
11.	Power of Attorney	100	100	100	100	100	100	100	100	100
	BID RESPONSIVENESS	NO	YES	YES	YES	YES	NO	NO	NO	YES

KEY

- 100: - Compliant
0: - Not Compliant
YES: - Bid Responsive
NO: - Bid Non-responsiveness

NOTES:-

Bidder 1 was non-responsive for not submitting a duly signed letter of bid, no line of credit, no bid security and no litigation status.

Bidder 6 was non-responsive for not submitting workers compensation certificate and NCC Grade 6, Category B.

Bidder 7 was non-responsive for not submitting workers compensation certificate, no NAPSA.

Bidder 8 did not submit a litigation status.

Bidders 2, 3, 4, 5 and 9 were responsive having met all the requirements and proceeded to the Technical stage

Table No.2 TECHNICAL EVALUATION STAGE

The results of the technical evaluation are shown below:

S/ N	QUALIFICATION	Bidd er No.2	Bidd er No.3	Bidd er No.4	Bidd er No. 5	Bidd er No.9
1.	Site Engineer three years' work experience	100	100	100	100	100
2.	1no. or more Works foremen	0	100	100	100	100
3.	1no. or more Electricians	100	100	100	100	100
4.	List of proposed tools and equipment with proof of ownership or hire	100	100	100	100	100
5.	Proof of experience in executing similar works	100	100	100	100	100

6.	2no. or more bricklayers	100	100	100	100	100
7.	1no. or more plumbers	100	0	100	100	100
8.	1no. or more carpenters	100	100	100	100	100
9.	Proof of qualification for each personnel	100	100	100	100	100
	Bid Responsiveness	NO	NO	YES	YES	YES

KEY

- 100: - Compliant
0: - Not Compliant
YES: - Bid Responsive
NO: - Bid Non-responsiveness

NOTES:-

Bidder 2 was not responsive for not submitting the list of tools required

Bidder 3 was not responsive for not submitting the plumber

Bidders 4, 5 and 9 were responsive having met all the requirements and proceeded to the Commercial Stage

Table 3: COMMERCIAL EVALUATION

The results of the Commercial evaluation are shown below:

S/N	Qualification	Bidder No.4	Bidder No. 5	Bidder No. 9
1.	Amount quote in Zambian Kwacha	100	100	100
2.	Delivery period of 5no. of months or less	100	100	100
3.	Bid validity of not less than 60 days	100	100	100
4.	3no. of months latest bank statements	100	100	100
5.	Work Schedule in graph mode/Gantt Chart	100	100	100
6.	Priced bill of quantity	100	100	100
7.	Proof of purchase of solicitation document	100	100	100
	BID RESPONSIVENESS	YES	YES	YES

KEY

- 100: - Compliant
 0: - Not Compliant
 YES: - Bid Responsive
 NO: - Bid Non-responsiveness

NOTE: Bidders 4, 5 and 9 were responsive having met all the requirements and proceeded to the financial stage of evaluation.

Table 4: FINANCIAL EVALUATION STAGE

The results of the financial evaluation are shown below:

S/N	Qualification	Bidder No. 4	Bidder No. 5	Bidder No. 9
1.	Submitted tender sum (ZMK)	K1,997,925.90	K1,922,671.51	K1,755,944.01
2.	Corrected Bid Price (ZMW)			
3.	Arithmetic error check	K80,167.72	K68,335.71	
4.	Unconditional discounts if any			
5.	Tax inclusion if not included in the bid sum			
6.	Corrected tender sum	K2,078,093.62	K1,991,007.22	
	BID RESPONSIVENESS	YES	YES	NO

KEY

- 100: - Compliant
 0: - Not Compliant
 YES: - Bid Responsive
 NO: - Bid Non-responsiveness

NOTE; Bidder 9 was non- responsive for submitting a wrong BOQ for a staff house which was not part of the BOQ for the Double 2X3 Classroom Block.

DECISION OF THE COMMITTEE

After the deliberations on the matter, on a proposal by Mr. Kebby Kazoka duly seconded by Mr. Emmanuel Kazangalare it was,

RESOLVED

That the Price Reasonableness Analysis for Construction of a Double Storey Classroom Block at Mandenga Primary School be approved as presented and the Contract for the said project be awarded to Messrs Chipochile Venture Limited at the corrected tender sum of ZMW1, 991, 007.22 for being the best evaluated bidder.

CLOSING REMARKS

Having no any other business, the Chairperson thanked the members for their active participation. The meeting declared closed at 17:10 hours.

CERTIFIED AS A TRUE AND CORRECT RECORD OF THE PROCEEDINGS



MATTHEWS MASHAPI
FOR/ON BEHALF OF COUNCIL SECRETARY
CHAIRPERSON

DATE 29-12-22

c. chipochile
CHOMBA CHILESHE
PROCUREMENT OFFICER
PC- SECRETARY

